



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00098-01 / Saddle Ridge, 18th Filing Annexation
Date: May 9, 2022

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Related Items:

- Saddle Ridge 18th, Zone Change (UDC-22-00098-01-01)
- Saddle Ridge 18th Filing, Final Plat (UDC-22-00098)
(Anticipated for introduction on 5/23/2022)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTHWEST OF THE INTERSECTION OF CHRISTENSEN ROAD AND PERSHING BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That WJE, LLC, owners of:

a portion of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the north right of way of Pershing Boulevard from which the E $\frac{1}{4}$ corner of Section 25, T.14N., R.66W., of the 6th P.M., bears N35°18'49"E, a distance of 678.48 feet (said point of beginning, being the SE corner of Lot 11, Block 3, Saddle Ridge 16th Filing); thence S65°53'48"W, a distance of 390.00 feet to the SW corner Lot 11, Block 3, Saddle Ridge 16th Filing; thence S24°04'29"E, a distance of 100.00 to the southerly right of way of Pershing Boulevard, thence along the southerly right of way of Pershing Boulevard N65°53'57"E, a distance of 774.12 feet to the east section line of Section 25; thence along the east line of Section 25, N00°07'48"E, a distance of a 488.12 feet to the E $\frac{1}{4}$ corner of Section 25; thence continuing along the east line of Section 25, N00°04'11"E, a distance of E, a distance of 1322.22 feet to a point; thence N89°58'11"W, a distance of 1588.16 feet to a point on the east line of Saddle Ridge 13th Filing; thence along, the easterly line of Saddle Ridge 13th Filing for the following 19 courses; thence S00°07'26"W, a distance of 249.40 feet; thence 254.78 feet on a curve to left, through an angle of 41°37'46", having a radius of 350.66 feet, and whose long chord bears S20°41'27"E, a distance of 249.21 feet to a point; thence S39°48'12"E, a distance of 93.88 feet; thence S50°11'48"W, a distance of 120.00 feet; thence S39°48'12"E, a distance of 170.00 feet; thence N50°11'48"E, a distance of 140.00 feet; thence S39°48'12"E, a distance of 52.43 feet; thence 839.15 feet on a curve to the right, through an angle of 129°56'34", having a radius of 370.00 feet, and whose long chord bears S25°10'05"W, a distance of 670.51 feet to a point; thence N89°51'38"W, a distance of 245.13 feet; thence S00°08'22"W, a distance of 60.00 feet; thence 31.42 feet on a curve to the left, through an angle of 90°00'00", having a radius of 20.00 feet, and whose long chord bears S44°51'38"E, a distance of 28.28 feet to a point; thence S89°51'38"E, a distance of 111.54 feet; thence 239.29 feet on a curve the right, through an angle of 31°53'04", having a radius of 430.00 feet, and whose long chord bears S73°55'06"E, a distance of 236.21 feet to a point; thence S57°58'35"E, a distance of 238.13 feet; thence 215.41 feet on a curve

to the left, through an angle of 56°05'59", having a radius of 220.00 feet, and whose long chord bears S86°01'34"E, a distance of 206.91 feet to a point; thence N65°55'27"E, a distance of 19.65 feet; thence 23.00 feet on a curve to the left, through an angle of 65°53'23", having a radius of 20.00 feet, and whose long chord bears N32°58'45"E, a distance of 21.75 feet to a point; thence N00°02'04"E, a distance of 21.52 feet; thence N68°52'12"E, a distance of 64.34 feet; thence 39.83 feet along a curve to the left, through an angle of 114°06'37", having a radius of 20.00 feet, and whose long chord bears S57°01'15"E, a distance of 33.57 feet to a point; thence along the north line of Saddle Ridge 16th Filing, N65°55'27"E, a distance of 361.65 feet to the northeast corner of Saddle Ridge 16th Filing; thence along the east line of Saddle Ridge 16th Filing, S24°04'33"E, a distance of 332.00 feet; thence continuing along the east line of Saddle Ridge 16th Filing S65°55'27"W, a distance of 6.00 feet; thence continuing along the east line of Saddle Ridge 16th Filing, S24°04'33"E, a distance of 181.84 feet to the point of beginning. Containing 55.32 acres more or less.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A1 Agricultural and Rural Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

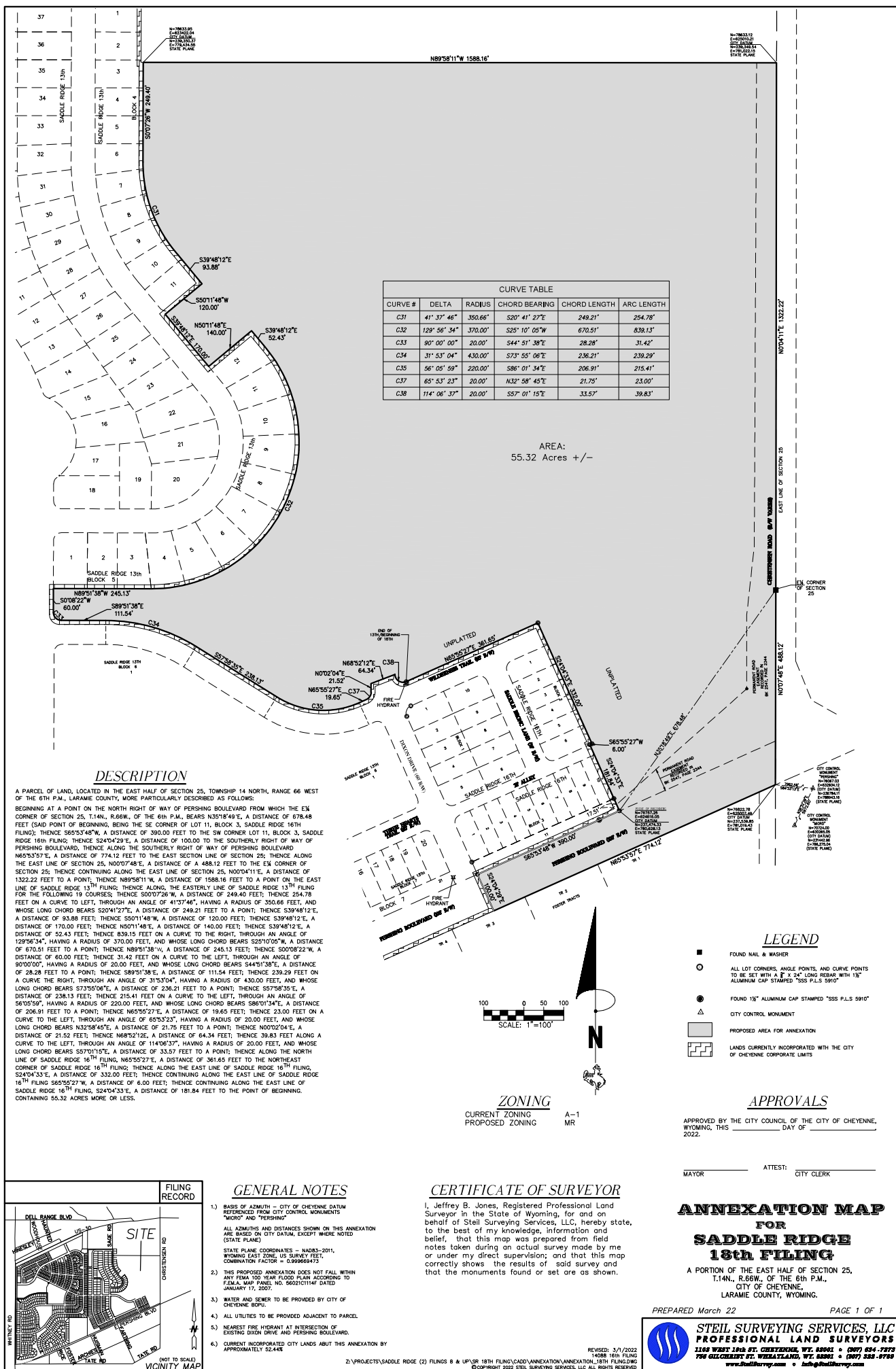
THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____





A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 9, 2022

STAFF REPORT

FILE: UDC-22-00098-01: Annexation of Saddle Ridge, 18th Filing

REQUEST: An annexation of 55.3 acres of land

LOCATION: Northwest of the intersection of Christensen Road and Pershing Boulevard

APPLICANT: WJE, LLC

AGENT: WJE, LLC – John Sayers

OWNER: WJE, LLC

PURPOSE: To develop a large area of currently vacant land with urban residential development

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 55.3 acres of land to develop land with urban-residential style development. Currently, the property is one ownership parcel in the County. The land is currently undeveloped. A zone change and plat is proposed concurrently with this annexation. All applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County A-1 Agricultural and Rural Residential to the City MR Medium-density Residential zone.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-1 Agricultural and Rural Residential	Vacant
North	Mixed-use Residential, Mixed-use Commercial	County A-1	Assembly, Vacant
South	Urban Residential	P Public, MR Medium-density Residential, County AR Agricultural Residential	Single-family residential, rural residential, vacant
East	Urban Residential	County A-2 Agricultural	Rural residential
West	Urban Residential	MR	Single-family residential

The property is currently zoned A-1 Agricultural and Rural Residential in the County. The property is concurrently proposed to be annexed and rezoned to the City MR Medium-density Residential zone. The City MR zone is intended for The MR District is intended for a mix of density and dwelling types within a neighborhood. The development pattern is primarily residential and requires full access to City services.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and

sanitation services. The property, if occupied, will also be required to be connected to City sanitary sewer instead of having septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to previously annexed areas which are currently developing. The contiguity and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities already exist in the area.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The area proposed for annexation is about 52% contiguous, along the western and southwestern edges.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on April 7, 2022. The public hearing for this annexation is scheduled for May 9, 2022. Twenty (20) business days prior to the announced public hearing is April 11, 2022. The earliest confirmation of delivery was dated April 8, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage responsible growth. As this annexation is on the edge of the community, any development action needs to take into careful consideration how to extend infrastructure, including utilities and streets.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with a mix of urban residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits.

STAFF REVIEW:

Through the review process, the following comments were received:

- New septic systems will not be allowed.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

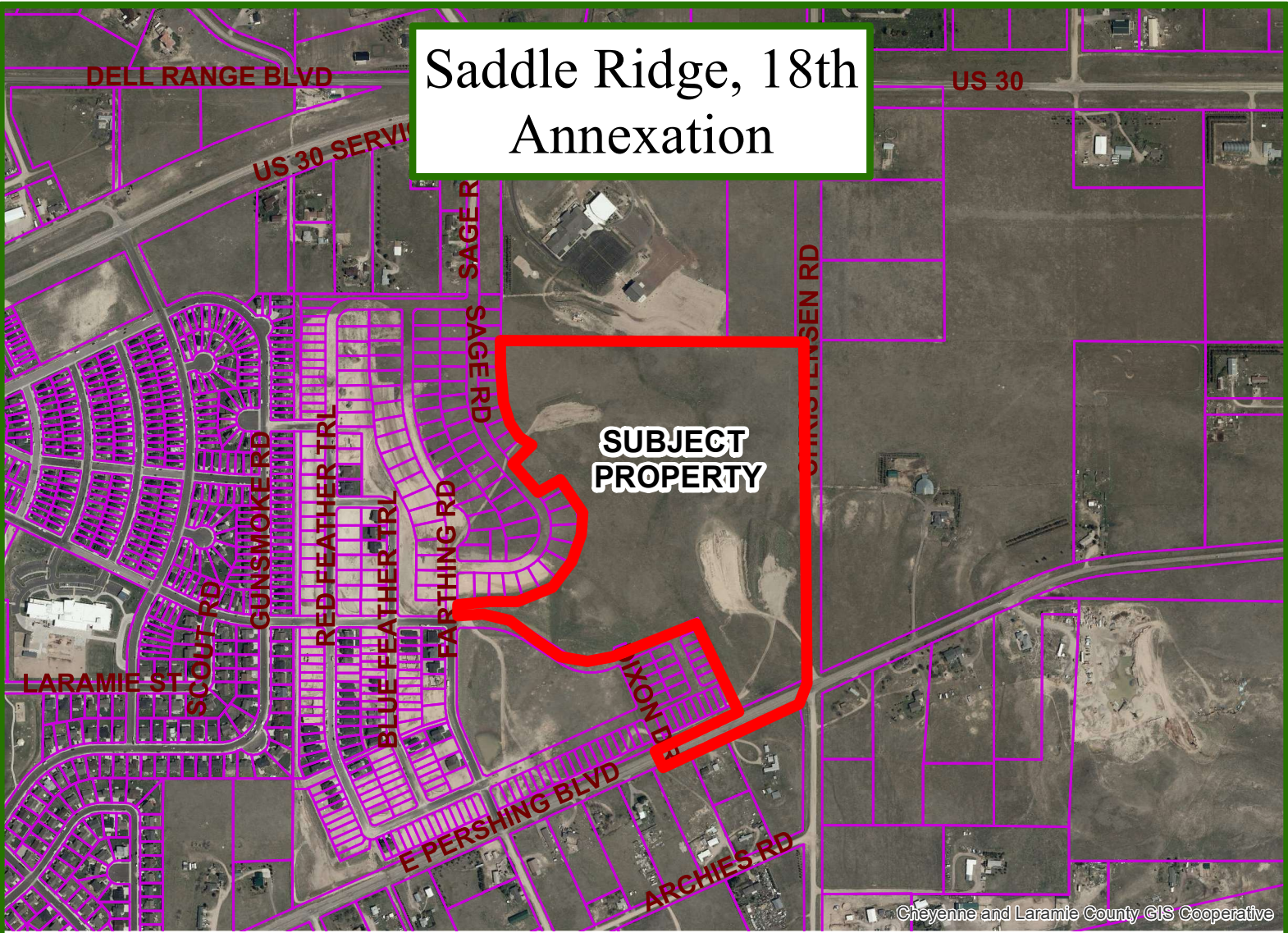
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

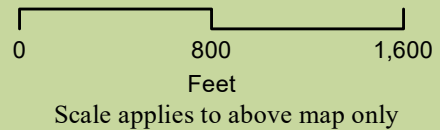
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map

Saddle Ridge, 18th Annexation

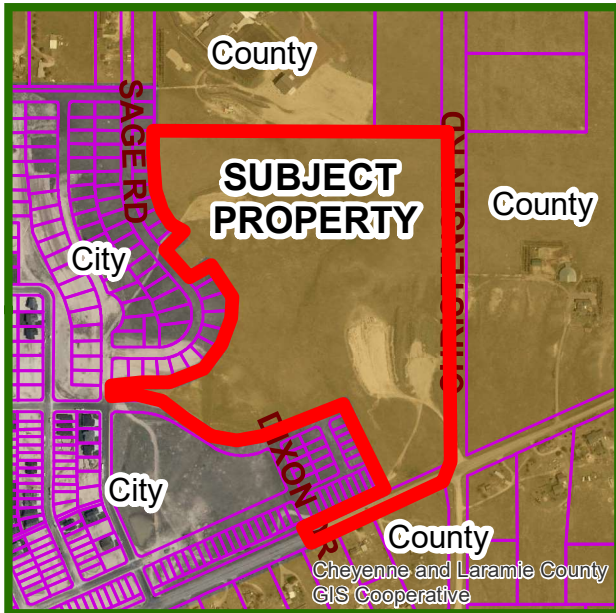


Application Number
Annexation
UDC-22-00098-01

Attachment 1

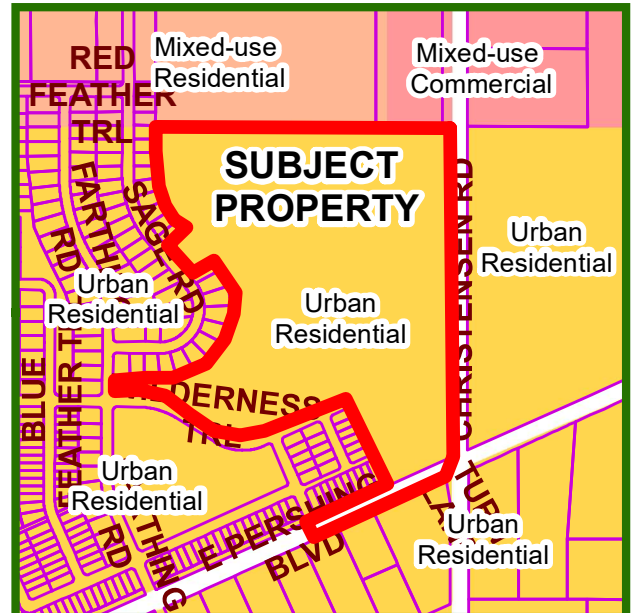


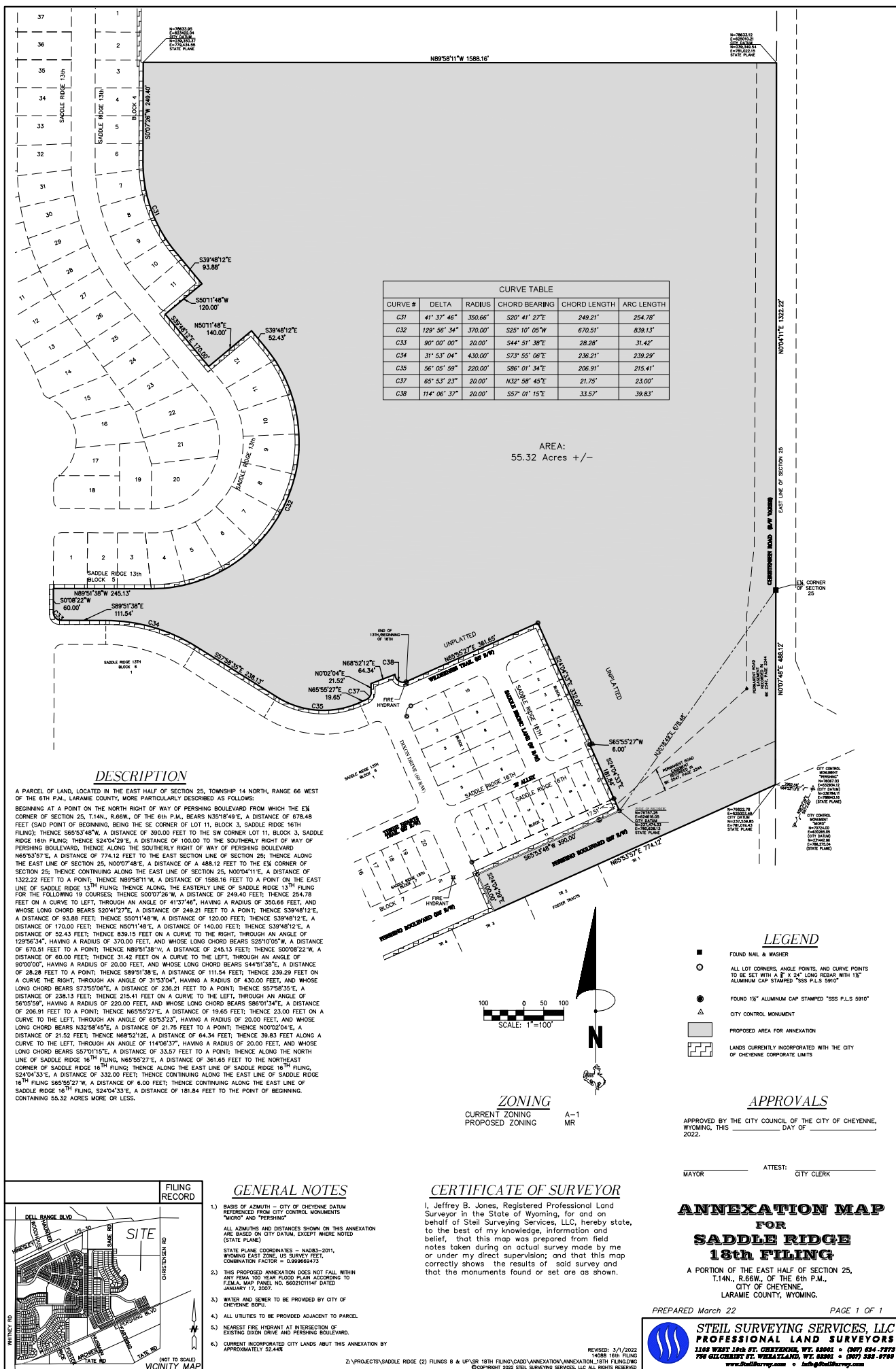
Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use





Planning and Development: Annexation Application

Submission date: **23 March 2022, 8:04AM**
Receipt number: **17**
Related form version: **10**

General Information

Applicant Name:	WJE, LLC
Applicant Address:	506 Shoshoni Street
Applicant City:	Cheyenne
Applicant State:	Wy
Applicant Zip Code:	82009
Applicant Phone:	307-634-8400
Applicant Email	johns@edwardsdevelopment.com
Representative Name:	John Sayers
Representative Address:	506 Shoshoni Street
Representative City	Cheyenne
Representative State:	WY
Representative Zip Code:	82009
Representative Phone:	307-634-8800x102
Representative Email:	johns@edwardsdevelopment.com
Owner Name:	WJE, LLC
Owner Address:	506 SHoshoni Street
Owner City:	Cheyenne

Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	307-634-8400
Owner Email:	johns@edwardsdevelopment.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	signed letter of authorization.pdf
Project Location (Street Address or General Location):	West of Christensen and North of Pershing and South of Cheyenne Hills Church
Assessor's Parcel ID number(s)	14662510001900
Total Project Area	55.32 Acres
Current Zoning	A-1
Proposed Zoning	MR - Medium-density Residential

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	UNPLATTED
Formal Annexation Petition	petition for annexation sr18.pdf
Board of Public Utilities Clearance Form	Ltr from Brooks.pdf
Annexation Map	ANNEXATION_18TH FILING-ANNEXATION.pdf

Signature / Certification

Applicant Signature	Name of signatory: John Sayers  Link to signature
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Please enter an email address for an email receipt.

johns@edwardsdevelopment.com



Planning and Development Department – ANNEXATION PETITION

PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT WJE, LLC,
Owner name(s)

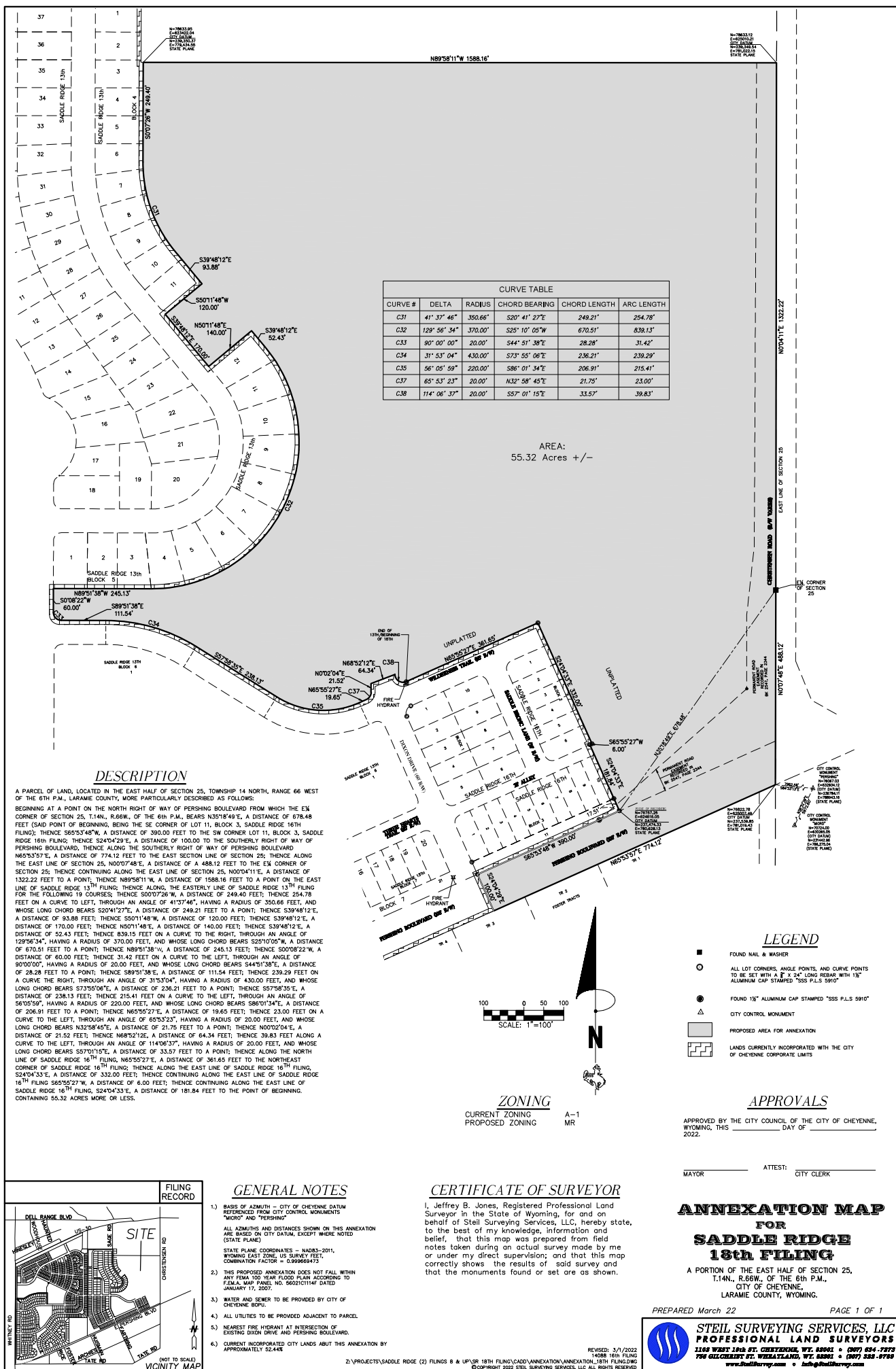
The undersigned owners, hereby petition to annex to the City of Cheyenne, Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

SEE ATTACHED

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.





Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

Signature  Printed Name JOHN EDWARDS Date 3/29/2021

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Signature _____ Printed Name _____ Date _____

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest: